

Warsaw, August 31, 2022

Decision

DKE.561.19.2022

Based on Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2021, item 735, as amended) in connection with Article 7 sections 1 and 2 and Article 60 of the Act of May 10, 2018, on the protection of personal data (Journal of Laws of 2019, item 1781) and based on Article 57 section 1 letters a) and h), Article 58 section 2 letter b) in connection with Article 31 and Article 58 section 1 letters a) and e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of 04.05.2016, p. 1, with amendments published in OJ EU L 127 of 23.05.2018, p. 2, and in OJ EU L 74 of 04.03.2021, p. 35), after conducting administrative proceedings regarding the imposition of an administrative monetary penalty on Ms. I. N., conducting business under the name D., the President of the Personal Data Protection Office issues a reprimand to Ms. I. N., conducting business under the name D., for violating the provisions of Article 31 and Article 58 section 1 letters a) and e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of 04.05.2016, p. 1, with amendments published in OJ EU L 127 of 23.05.2018, p. 2, and in OJ EU L 74 of 04.03.2021, p. 35), consisting of a lack of cooperation with the President of the Personal Data Protection Office in the performance of his duties and failing to provide the President of the Personal Data Protection Office with access to personal data and information necessary to carry out his tasks.

Justification

Factual Background

A complaint was submitted to the Personal Data Protection Office (hereinafter also referred to as "UODO") by Mr. A. M. (hereinafter referred to as "the Complainant") regarding irregularities in the processing of his personal data by Ms. I. N., conducting business under the name D. (hereinafter referred to as "the Entrepreneur"), consisting of failure to meet the informational obligations arising from Articles 13, 14, and 15 of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of 04.05.2016, p. 1, with amendments published in OJ EU L 127 of 23.05.2018, p. 2, and in OJ EU L 74 of 04.03.2021, p. 35) (hereinafter referred to as "Regulation 2016/679").

In order to examine the complaint, the President of the Personal Data Protection Office (hereinafter referred to as "the President of UODO") initiated administrative proceedings under reference number [...] in which, based on Article 58 section 1 letters a) and e) of Regulation 2016/679 – by letter dated [...] December 2021 – he summoned the Entrepreneur to respond to the content of the complaint and to provide explanations: when (please specify the exact date), on what legal basis (please indicate the specific provision(s) of law), for what purpose and to what extent (please list the categories/types of data) the Entrepreneur obtained the Complainant's personal data; whether the Entrepreneur currently processes the Complainant's personal data, and if so, on what legal basis (please indicate the specific provision(s) of law), for what purpose, to what extent (please list the categories/types of data and when these data will be processed. If the personal data is processed based on Article 6 section 1 letter c of GDPR, the specific legal provision that imposes the obligation to process the data must be indicated; whether, and if so, when and how the Entrepreneur fulfilled the informational obligation towards the Complainant resulting from Articles 13, 14, and 15 of Regulation 2016/679 (I call for the indication of the content of the information provided to the Complainant and the submission of documentation confirming the fulfillment of the aforementioned informational obligations); whether the Complainant requested the Entrepreneur to fulfill the informational obligations towards him resulting from Articles

13, 14, and 15 of Regulation 2016/679; whether, and if so, when, to what extent (I call for the listing of categories/types of data), on what legal basis, and to which entity/entities the Complainant's personal data were disclosed.

The Entrepreneur responded with explanations in a letter dated [...] January 2022. She informed that she did not process or disclose the Complainant's personal data to other entities. She provided services for D. Joint Stock Company based on a contract dated [...] October 2014 for performing agency activities. Under this contract, D. Company was the administrator of the personal data collection of individuals interested in the offer obtained by the Entrepreneur. D. Company, on [...] March 2015, granted the Entrepreneur authorization to process personal data in D. S.A. In December 2017, the Entrepreneur...

terminated cooperation with D. S.A., and all data entrusted to him has been deleted by him. The information regarding the request for compliance with the information obligation towards the Complainant arising from Articles 13, 14, and 15 of Regulation 2016/679 was only received by the Entrepreneur at the moment the complaint was submitted.

Due to the necessity of obtaining additional clarifications in the matter, two further letters were sent to the Entrepreneur, dated respectively: [...] January 2022 and [...] March 2022. The President of the Personal Data Protection Office (UODO) called for a written indication of the legal basis on which the Entrepreneur made a phone call to the Complainant's phone number and sent an SMS message. Both letters were received on [...] January 2022 and [...] March 2022, respectively. The Entrepreneur did not respond to either of these letters.

The letter dated [...] March 2022 contained a warning that failure to provide explanations in the matter would constitute a violation of the obligation to cooperate with the supervisory authority, which is the Personal Data Protection Office, and consequently, the President of UODO may consider imposing an administrative fine based on Article 83(4)(a) or Article 83(5)(e) of Regulation 2016/679.

The above factual circumstances were established by the President of UODO based on the entirety of the official correspondence conducted between the Entrepreneur and the President of UODO, which is included in the case files under reference number [...]. This correspondence reflects the entirety of attempts made by the President of UODO to gain access to information necessary for the execution of his tasks, that is, in this case – to consider the matter under reference number [...], and on the other hand – the Entrepreneur's reaction to the requests of the President of UODO.

Due to the lack of cooperation with the President of UODO in the performance of his duties and the failure to provide information necessary for the President of UODO to carry out these tasks, the President of UODO initiated ex officio administrative proceedings against the Entrepreneur (under reference number DKE.561.19.2022) regarding the imposition of an administrative fine for the violation of Articles 31 and 58(1)(a) and (e) of Regulation 2016/679.

The Entrepreneur was informed of the initiation of the proceedings by a letter dated [...] June 2022, delivered on [...] June 2022. This letter summoned the Entrepreneur – for the purpose of determining the basis for the calculation of the fine, based on Article 101a(1) of the Act of May 10, 2018, on the protection of personal data (Journal of Laws of 2019, item 1781), hereinafter referred to as "u.o.d.o." – to present a financial report or other document showing the amount of turnover and financial result achieved by the Entrepreneur in 2021.

In response to the initiation of administrative proceedings under reference number DKE.561.19.2022, the Entrepreneur provided explanations in a letter dated [...] July 2022 regarding the questions contained in the letters dated [...] January 2022 and [...] March 2022. He informed that the phone call and the SMS sent to the Complainant occurred accidentally due to the earlier processing of the Complainant's data on behalf of D. S.A. The lack of response to the letters was not due to his fault, lack of will, or desire to cooperate with the President of UODO, but "due to the oversight by third parties of the correspondence sent by this Office" as well as inadequate organization of correspondence flow and division of responsibilities. The Entrepreneur expressed readiness for further cooperation to clarify the matter. He also provided the financial report for 2021.

After reviewing all the evidence collected in the case, the President of the Personal Data Protection Office considered the following.

Legal Justification

According to Article 57(1)(a) of Regulation 2016/679, the President of UODO, as the supervisory authority within the meaning of Article 51 of Regulation 2016/679, monitors and enforces the application of this regulation within its territory. Within the scope of its competencies, the President of UODO is authorized, among other things, to conduct proceedings regarding the application of the provisions of this legal act (Article 57(1)(h)), and in particular, to consider complaints lodged by data subjects and to conduct proceedings regarding these complaints in accordance with the provisions of Article 57(1)(f) of Regulation 2016/679.

To enable the realization of the tasks thus defined, the President of UODO has a number of powers specified in Article 58(1) of Regulation 2016/679 in the context of conducted proceedings, including the power to order the controller and the processor to provide all information necessary for the realization of his tasks (Article 58(1)(a)) and the power to obtain from the controller and the processor access to all personal data and information necessary for the realization of his tasks (Article 58(1)(e)).

Violations of the provisions of Regulation 2016/679 related to the lack of cooperation with the President of UODO in the performance of his duties, resulting in a violation of Article 31 of Regulation 2016/679, are subject – according to Article 83(4)(a) in fine of Regulation 2016/679 – to an administrative fine of up to EUR 10,000,000, and in the case of an enterprise – up to 2% of its total annual worldwide turnover from the previous financial year, with the higher amount applicable.

Violations of the provisions of Regulation 2016/679 consisting of the failure of the controller or processor to provide access to all personal data and information mentioned above, resulting in a violation of the rights of the authority specified in Article 58(1), are subject – according to Article 83(5)(e) in fine of Regulation 2016/679 – to an administrative fine of up to 20.

000 000 EUR, and in the case of an enterprise – up to 4% of its total annual worldwide turnover from the previous financial year, with the higher amount being applicable. The President of the UODO is also entitled to a number of specific corrective powers as defined in Article 58(2), including issuing warnings to the administrator or processor in the event of violations of the provisions of Regulation 2016/679 by processing operations. The President of the UODO, acting under Article 58(2)(b) of Regulation 2016/679, may deem it justified to issue a warning to the administrator or processor in the event of a violation of the provisions of Regulation 2016/679, including the provisions of Article 31 and Article 58(1)(a) and (e) of this legal act.

According to Recital 148 of Regulation 2016/679, in order for the enforcement of the provisions of the regulation to be more effective, sanctions, including administrative fines, should be imposed for violations, in addition to or instead of appropriate measures imposed under this regulation by the supervisory authority. If the violation is minor, the monetary penalty may be replaced by a warning. However, due attention should be paid to the nature, gravity, and duration of the violation, whether the violation was not intentional, the actions taken by the administrator to minimize damage, the degree of responsibility or any relevant prior violations, the manner in which the supervisory authority became aware of the violation, compliance with measures imposed on the administrator or processor, adherence to codes of conduct, and any other aggravating or mitigating factors.

Relating the aforementioned provisions of Regulation 2016/679 to the established factual state in this case, it should be noted that the Entrepreneur, as a party to the proceedings with reference number [...], by failing to provide the necessary explanations for resolving the case with reference number [...], violated the obligation arising from Article 58(1)(a) and (e) of Regulation 2016/679 to ensure the President of the UODO access to information necessary for the performance of his tasks. In this case, the necessary information for continuing the proceedings was to indicate on what legal basis the Entrepreneur made a phone call to the Complainant's phone number and sent an SMS message. The President of the UODO, in order to ascertain this information, twice requested the Entrepreneur to

provide additional explanations. Despite the correspondence being received by the Entrepreneur, the President of the UODO did not receive a response to any of the letters sent (dated [...] January 2022 and [...] March 2022). The above necessitated the initiation of these proceedings regarding the imposition of an administrative monetary penalty. As a result, the Entrepreneur promptly began cooperating with the President of the UODO and, by letter dated [...] July 2022, provided explanations in the proceedings with reference number [...] and informed about the reasons for the previous lack of response to the authority's requests. The explanations submitted allowed for further proceedings in the aforementioned case.

The described conduct of the Entrepreneur, consisting of a lack of response to the requests directed to him by the President of the UODO, also exhausts – in addition to the violation of Article 58(1)(a) and (e) of Regulation 2016/679 – the elements of a violation of Article 31 of this regulation, which imposes an obligation on the administrator and processor to cooperate with the supervisory authority – at its request – in the performance of its tasks. In the opinion of the President of the UODO, there is no doubt that for a certain period (from the moment of receiving the letter dated [...] January 2022 to the moment of responding with the letter dated [...] July 2022) in the proceedings with reference number [...] it could not be said that there was cooperation on the part of the Entrepreneur despite the requests directed to him. These requests indeed formulated a "demand" of the supervisory authority referred to in Article 31 of Regulation 2016/679. The justification presented by the Entrepreneur for the lack of response to the requests of the President of the UODO does not relieve him of responsibility for the established omission. However, the reasons indicated by the Entrepreneur for the lack of cooperation with the supervisory authority should be taken into account as credible and having a significant impact on the assessment of the Entrepreneur's behavior in the context of the choice of the sanction applied to him in these proceedings.

In the factual state at hand, as a result of initiating these proceedings, no other circumstances indicating a lack of willingness to cooperate on the part of the Entrepreneur with the President of the UODO were found. The circumstances of the case, particularly the expressed willingness of the Entrepreneur to cooperate with the President of the UODO, allow for the conclusion that his initial inaction was not intentional. In the opinion of the supervisory authority, the mere initiation of proceedings regarding the imposition of an administrative monetary penalty and the real prospect of its imposition became a clear signal for the Entrepreneur that further evasion of the obligations imposed by the provisions of Regulation 2016/679 would inevitably lead to the application of the most severe sanctions provided for by these provisions.

Having the above in mind, acting under Article 58(2)(b) of Regulation 2016/679, according to which each supervisory authority has the right, in the context of ongoing proceedings, to issue a warning to the administrator or processor in the event of violations of the provisions of this regulation by processing operations, the President of the UODO deemed it justified to issue a warning to the Entrepreneur regarding the established violation of the provisions of Article 31 and Article 58(1)(a) and (e) of Regulation 2016/679, assuming that in light of the criteria specified in Article 83(1) and (2) of Regulation 2016/679, it will be effective and sufficient. However, it should be noted that in the event of a similar occurrence in the future, any admonition issued by the President of the UODO towards the Entrepreneur will be taken into account when assessing the grounds for the possible imposition of an administrative penalty, in accordance with the principles set out in Article 83(1) and (2) of Regulation 2016/679. In this factual and legal situation, the President of the UODO has decided as stated in the ruling.

Instruction

The decision is final. The party has the right to file a complaint against the decision to the Provincial Administrative Court in Warsaw within 30 days from the date of its delivery, through the President of the UODO (address: ul. Stawki 2, 00 - 193 Warsaw). The fee for the complaint is 200 PLN. In proceedings before the Provincial Administrative Court, the party has the right to apply for legal aid, which includes exemption from court fees and the appointment of a lawyer, legal advisor, tax advisor, or patent attorney. Legal aid may be granted upon the request of the Party submitted before the

initiation of the proceedings or during the course of the proceedings. The application is free of court fees.

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